

NIRMAAN MODEL UNITED NATIONS 2026

UNHRC

AGENDA:

Deliberation on the normalisation of civilian as 'collateral damage' and its compatibility with international human rights obligations.

1. COMMITTEE OVERVIEW

The UN Human Rights Council (UNHRC) is an inter-governmental body within the UN system, established in 2006 (GA Resolution 60/251), replacing the former Commission on Human Rights. Composed of 47 member states elected for 3-year terms, it addresses human rights violations worldwide.

Key mechanisms include the Universal Periodic Review (UPR), Special Procedures (independent experts), and Commissions of Inquiry for specific situations.

2. UNDERSTANDING THE AGENDA

The term "collateral damage" refers to unintended civilian casualties and destruction of civilian property during military operations targeting legitimate military objectives. This agenda critically examines whether the normalisation of such harm is compatible with international obligations.

THREE PILLARS OF INTERNATIONAL HUMANITARIAN LAW (IHL):

PRINCIPLE OF DISTINCTION (Geneva Conventions, 1949; Additional Protocol I, Art. 48)

- Parties must always distinguish between civilians and combatants
- Attacks may only be directed at military objectives
- Civilians and civilian objects shall not be the target of attack
- Violation constitutes a war crime under the Rome Statute (Art. 8)

PRINCIPLE OF PROPORTIONALITY (Additional Protocol I, Art. 51(5)(b))

- Prohibits attacks expected to cause civilian harm "excessive" relative to the concrete and direct military advantage anticipated
- Key legal challenge: "excessive" is subjective and context-dependent
- No fixed ratio exists in law; requires case-by-case assessment

PRINCIPLE OF PRECAUTION (Additional Protocol I, Art. 57)

- Constant care must be taken to spare civilian populations
- Feasible precautions include: verifying targets, choosing weapons to minimize civilian harm, advance warning when possible
- Attacking party bears obligation to cancel or suspend attack if civilian harm appears disproportionate

3. CONTEMPORARY CASE STUDIES

GAZA CONFLICT (2023-2025)

- UN reports document over 40,000 Palestinian civilian deaths
- ICJ Advisory Opinion (2024) on the legal consequences of Israel's occupation
- Allegations of disproportionate use of force, use of AI targeting systems ("Lavender" and "The Gospel")
- Destruction of civilian infrastructure: hospitals, schools, refugee camps
- UNHRC established Commission of Inquiry (Resolution S-30/1)

UKRAINE CONFLICT (2022-PRESENT)

- OHCHR documented 10,000+ civilian casualties in first two years
- Attacks on energy infrastructure during winter months
- Use of cluster munitions in populated areas
- ICC arrest warrant for Vladimir Putin (March 2023) for war crimes

YEMEN CIVIL WAR (2014-PRESENT)

- Saudi-led coalition airstrikes on weddings, hospitals, school buses
- UN Group of Eminent Experts documented patterns of attacks on civilians
- Over 150,000 deaths, 4 million internally displaced

AUTONOMOUS WEAPONS AND AI TARGETING

- Use of AI systems to generate military targets raises accountability questions
- "Kill lists" generated by algorithms with minimal human oversight
- International debate on Lethal Autonomous Weapons Systems (LAWS) at the CCW

4. KEY LEGAL INSTRUMENTS

- Geneva Conventions (1949) and Additional Protocols (1977)
- Rome Statute of the International Criminal Court (1998)
- Universal Declaration of Human Rights (1948), Article 3 · Right to Life
- ICCPR (1966), Article 6 · Right to Life as non-derogable
- UN General Assembly Resolution 2444 · Respect for Human Rights in Armed Conflicts
- Hague Conventions (1899, 1907)
- ICJ Advisory Opinion on Nuclear Weapons (1996) · IHL applies to all weapons
- Arms Trade Treaty (2014)

5. POSITION PAPER GUIDELINES

1. HEADER: Country, committee, delegate details
2. COUNTRY POSITION: Your nation's stance on civilian protection in armed conflict
3. TRACK RECORD: Your country's ratification of relevant treaties, military conduct record
4. PROPOSED SOLUTIONS: Actionable clauses

SAMPLE RESOLUTION IDEAS:

- Mandatory independent investigations into all incidents of mass civilian casualties
- Moratorium on AI-assisted targeting systems until international legal framework is established
- Strengthening the ICC's capacity to investigate and prosecute war crimes
- Establishment of a permanent UN mechanism for civilian casualty recording
- Compensation fund for civilian victims of armed conflict